his Motion to Stike until September 18, 2025, rendering it untimely.

Plaintiff's Motion is not Brought Pursuant to CCP § 473

Additionally, Plaintiff's Motion is improper because the plain language of the code provides for a specific mechanism to challenge a DNMS which Plaintiff has failed to comply with, rendering his Motion fatally defective. The statute requires the parties that seek to challenge a DNMS through the framework of a motion pursuant to Section 473 of the Code of Civil Procedure. Plaintiff did not do so here, rendering his motion improper and fatally defective

Conclusion

In consideration of the above, **Plaintiff's Motion to Strike is denied.**

9. 9:00 AM CASE NUMBER: C25-01567
CASE NAME: ALEXIS DEAN VS. MONTE GARDENS ELEMENTARY SCHOOL (MOUNT DIABLO UNIFIED SCHOOL DISTRICT)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:

Department 309 (Judge Treat) recuses himself from this case. The demurrer is **continued** to January 23, 2026, so that it can be heard in the regularly assigned Department 32 (Judge Hiramoto).

10. 9:00 AM CASE NUMBER: C25-01730
CASE NAME: RINNOVO GROUP INC VS. ARMOR CONTRACTING COMPANY
***HEARING ON MOTION IN RE: LEAVE OF COURT TO INTERVENE ON BEHALF OF ITS INSURED ARMOR CONTRACTING COMPANY**
FILED BY: SCOTTSDALE INSURANCE COMPANY
TENTATIVE RULING:

This was handled by stipulation.

11. 9:00 AM CASE NUMBER: C25-01931
CASE NAME: NOEL LINARES VS. THI TRANG NGUYEN
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: LINARES, NOEL
TENTATIVE RULING:

Plaintiff moves for trial preference. The motion is expressly unopposed. The motion is therefore **granted**, and the parties are to appear (Zoom okay) to discuss a trial date.

12. 9:00 AM CASE NUMBER: C25-02259
CASE NAME: MYEASHA LEWIS VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA
****TENTATIVE RULING:****

Defendant Hyundai moves under both the California Arbitration Act (CAA) and the Federal Arbitration Act (FAA) to compel plaintiffs to arbitrate the claims set forth in their complaint, and to stay this action pending the outcome of arbitration. Because Hyundai has failed to establish that an enforceable arbitration agreement exists between itself and plaintiffs based on either the Owner's Handbook or the Connected Services Agreement, the motion is **denied**, as discussed below.

I. Background

Plaintiffs Myeasha N. Lewis and Shaun I. Joseph allege that on or around December 17, 2022 they purchased a 2023 Hyundai Elantra. (Declaration of Myeasha N. Lewis, ¶3; Complaint, ¶8.) Plaintiffs assert that the vehicle was delivered with serious defects including, but not limited to, engine, emission, and electrical system defects. (Complaint, ¶10.) Plaintiffs presented the vehicle for repairs on multiple occasions, but Hyundai was unable to conform the vehicle to the "applicable express warranty" after a reasonable number of repair attempts. (Complaint, ¶¶11-14, 28.) Plaintiffs allege the vehicle was not fit for its ordinary purpose because it was equipped with one or more defective systems or components. (Complaint, ¶39.) Plaintiffs filed the present suit on August 8, 2025, alleging three causes of action under the Song-Beverly Act. In response, defendant filed this motion on September 17th.

Defendant's motion invokes the arbitration provisions found in a purported "Owner's Handbook & Warranty Information" and in a "Connected Services Agreement Terms and Conditions." In support of its motion, defendant provides a declaration from counsel, Ali Ameripour, who attaches the purported handbook, as well as plaintiff's complaint (Exhibits 3 and 4, respectively). Defendant also provides a declaration from Vijay Rao, Hyundai's Director of Connected Ops & Owner Apps/Web, for Hyundai Motor America, Inc., who attaches the "Connected Services Agreement Terms and Conditions Effective as of 5/26/22," as well as a screenshot of what he asserts plaintiffs would have seen upon enrollment in the terms and conditions.

Plaintiffs oppose the motion, arguing defendant fails to show an agreement to arbitrate, that certain evidence is inadmissible, that the CSA does not cover their claims, and that the purported agreements are unconscionable. In support of the opposition, plaintiffs provide their own declarations and a declaration from counsel. Plaintiffs state they do not recall being "personally provided with a copy" of the Owner's Handbook, and that they were never informed about any arbitration provisions in the Owner's Handbook or being required to opt out within thirty days.

In its reply brief, defendant replies that no evidence is necessary under *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215; CRC 3.1330; and *Espejo v. S. Cal. Permanente Med. Grp.* (2016) 246 Cal.App.4th 1047, 1060, and that the agreements are not unconscionable.

II. Evidentiary Matters

Defendant requests judicial notice of the complaint. The request is denied as unnecessary; the Court does not need judicial notice for pleadings filed in this case.

Plaintiffs request judicial notice of federal regulations and legislative history concerning the

Magnuson-Moss Warranty Act. The request does not appear to be relevant to any argument made in the opposition. Accordingly, the request is **denied**.

Plaintiffs' objections to the evidence provided by defendant in support of the motion are **sustained**. Specifically, plaintiffs object to the statement in counsel's declaration about the identity of "Exhibit 3," the "Exhibit 3" (Owner's Handbook) itself, and paragraph 5 in the Declaration of Vijay Rao, which contains a statement that plaintiffs agreed to the CSA.

III. Standard

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

"[A] court, before granting a petition to compel arbitration, must determine the factual issue of 'the existence or validity of the arbitration agreement. In this way, a court's role, though limited, is critical. There is indeed a strong policy in favor of enforcing agreements to arbitrate, but there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable." (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219-20.)

Once the party seeking to compel arbitration has alleged that the agreement exists, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (*Ibid*.) If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (*Ibid*.)

IV. Analysis

Defendant's motion contends there are two different arbitration agreements that compel arbitration here: that found in the Owner's Handbook (Ameripour Decl. ¶3, Ex. 3) and that found in the CSA Terms & Conditions, to which customers purportedly must agree in order to enroll in Bluelink services (Rao Decl. ¶4, Ex. B).

A. Owners Handbook - No Agreement

With respect to the Owner's Handbook, counsel's declaration infers (but does not actually state) that plaintiffs purchased a vehicle and received a manual that included an arbitration agreement. Exhibit 2 to the declaration is a document simply described as "Plaintiffs' Owner's Handbook & Warranty Information." (Ameripour Decl., ¶3, Ex. 3.) The exhibit contains arbitration requirements to which plaintiff must affirmatively opt out within 30 days.

A consumer is "not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious." (*Sellers v. JustAnswer LLC* (2021)

73 Cal.App.5th 444, 461.)

The attorney's declaration includes no information about the source of the document, or any personal foundation for how counsel knows that the attached exhibit is a document that applies to plaintiff. Perhaps more importantly, the document does not contain any indication of acceptance by plaintiff, and there is no evidence the document was ever actually given to plaintiffs at any time. (See *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1288-90 [Ninth Circuit found arbitration provision in a warranty brochure to be insufficient to form an agreement to arbitrate with the consumer: "warranty generally does not impose any independent obligation on the buyer outside of the context of enforcing the seller's promises."])

Plaintiffs properly objected to the introduction of the handbook based on lack of foundation and hearsay. Those objections were sustained. Plaintiffs' declarations indicate they were not shown a copy of the warranty or otherwise informed by the dealer about an arbitration provision in the Owner's Handbook, and that they were not told to opt out of arbitration within 30 days if they desired to do so. (Lewis Decl., ¶¶4-5; Joseph Decl., ¶¶4-5.) The declarations sufficiently challenge the existence of an agreement such that defendant must present admissible evidence to show such agreement exists, which defendant fails to do.

While *Condee,* 88 Cal.App.4th 215, and CRC 3.1330, decrease the *initial* burden on a party moving to compel arbitration, the court in *Gamboa,* explains the implications of that decision. Quoting *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846, the court notes that "[p]roperly understood, *Condee* holds that a petitioner is not required to authenticate an opposing party's signature on an arbitration agreement as a *preliminary* matter in moving for arbitration or in the event the authenticity of the signature is not challenged." Here, plaintiffs have raised objections to the evidence and defendant has failed to meet its burden in light of the objections. (See *Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219, fn. 8.)

Addressing defendant's argument with respect to estoppel, the application of equitable estoppel principles might apply if plaintiffs had been put on notice of the arbitration agreement in the handbook prior to purchasing the vehicle and using it. But the facts here indicate otherwise. Aside from plaintiffs' own declarations stating they were not aware of it, or the opt-out requirements, the arbitration provisions appear in the "*Owner's* Handbook" suggesting one would not receive notice until after becoming the "owner" of the vehicle. Defendant has therefore failed to demonstrate mutual assent to arbitration.

In general, "[w]hen a plaintiff brings a claim which relies on contract terms against a defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement." (*JSM Tuscany, LLC v. Superior Court* (2011) 193 Cal.App.4th 1222, 1239.) Here, however, plaintiff expressly denies any reliance on the written terms of the warranty that appear in the handbook as the basis for her claims. Further, as noted above, a warranty imposes contractual obligations upon the seller, without imposing obligations on the buyer. (*Norcia,* 845 F.3d at 1288.) As such, equitable estoppel does not apply.

Hyundai does not show an arbitration agreement under the provisions in the Handbook.

B. Blue Link Connected Services Agreement - No Agreement

As to the terms and conditions of the clickwrap CSA, they do contain a "Binding Arbitration" provision within subpart C. of Section 14, entitled "Resolving Disputes." This subpart C. includes the following within the section, following the words "Arbitration Agreement":

> Hyundai and you agree to arbitrate any and all disputes and claims between us arising out of or relating to this Agreement, Connected Services, … the Vehicle, … except any disputes or claims which under governing law are not subject to arbitration, to the maximum extent permitted by applicable law. … This agreement to arbitrate is intended to be broadly interpreted and to make all disputes and claims between us subject to arbitration to the fullest extent permitted by law.

Plaintiffs have properly objected to the statement in paragraph 5 of Rao's declaration, that they enrolled their vehicle in Bluelink services. The Court has sustained the objection, depriving Hyundai of any evidence that plaintiffs' agreed to the terms and conditions. Defendant therefore fails to meet its burden here to show parties entered into the CSA.

Unconscionability

Hyundai having failed to show the existence of a binding arbitration agreement, it is not essential to go on and address whether the agreement would be invalid on unconscionability grounds if it existed. But as an alternative ground for denying this motion, the Court also concludes that either or both of the two proffered arbitration agreements would fail on this ground as well.

Plaintiff asserts that the arbitration agreement in the CSA is unconscionable and bears the burden to prove this defense. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126.) A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party. (*Id*. at 125.) To prevail on an unconscionability defense, a party must establish both a procedural element and a substantive element. (*Ibid*.) The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. (*Ibid*.) Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided. (*Ibid*.)

Procedural Unconscionability

As to procedural unconscionability, plaintiff presents no evidence as to the negotiation and formation of the contract, but defendant's evidence indicates a classic adhesion contract. Plaintiff must have clicked a check box that states, "I have read and agree to the Blue Link Terms & Conditions." (Rao Decl., Ex. 1.) This suggests little to no opportunity to negotiate the terms of the contract. (See Opposition, 15:15-16:24.) There is some degree of procedural unconscionability here based on the nature of the agreement.

Substantive Unconscionability

Turning to substantive unconscionability, plaintiff points to the symmetrical attorney fee provisions that contradict the Song Beverly Act's fee provisions favoring plaintiffs, and to the shortened statute of limitations which requires "ANY CLAIM AGAINST HYUNDAI OR GENESIS (OR ANY OTHER THIRD PARTY BENEFICIARY)" to be brought within "ONE YEAR AFTER THE CLAIM ARISES."

Hyundai, in its reply, attempts to distinguish the cases cited by plaintiff relating to shortened statutes of limitations, but the Court finds the authority persuasive. In *Fisher v. MoneyGram International, Inc.* (2021) 66 Cal.App.5th 1084, the appellate court held that a provision reducing a four-year statute of limitations to one-year was substantively unconscionable. Song-Beverly Act warranty claims are subject to a four-year statute of limitations. (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 213-215.) Shortening the limitations period to one year significantly limits the period to bring claims. Thus, the facts here are analogous to the facts at issue in *Fisher*.

Further, in *Gostev v. Skillz Platform, Inc.* (2023) 88 Cal.App.5th 1035, the court pointed to several nonmutual terms, "including, most notably, the requirement that only the plaintiff arbitrate his claims against the defendant, in its determination that the agreement was substantively unconscionable." The comparison is apt. Here, the CSA carves out claims only Hyundai would have as exceptions to the agreement. (See Rao Decl. Ex. B at ¶14(C)(a) ["However, any dispute you or we may have relating to copyrights or other intellectual property shall not be governed by this agreement to arbitrate."]; see also *Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 243-244 [finding one-sided carve-outs to be substantively unconscionable].)

Both the shortened one-year statute of limitations provision, as well as the one-sided carve out provisions of the CSA are substantively unconscionable.

As to fees, Hyundai essentially argues plaintiff's argument is "frivolous" and a "misinterpretation," but provides no support for reading the agreement to mean anything other than what plaintiff asserts it means. Hyundai appears to concede that its recovery of fees would be more limited than for plaintiff pursuant to Song-Beverly statutes. In any event, the CSA limits Hyundai's liability to $500 or the total amount paid for connected services during the 12 months preceding a claim, "UNDER ANY THEORY (INCLUDING BUT NOT LIMITED TO FRAUD, MISREPRESENTATION, BREACH OF CONTRACT, PERSONAL INJURY, OR PRODUCTS LIABILITY)." (Rao Decl., Ex. B, ¶11 ["Limitations of Liability"], §(E) ["THE MAXIMUM AGGREGATE LIABILITY OF HYUNDAI"].)

These provisions, collectively relating to fees, are substantively unconscionable.

The CSA is accordingly unconscionable and incapable of severance.

13. 9:00 AM CASE NUMBER: MSC22-00422
CASE NAME: BRADSHAW VS FRANCO HERRERA, IOX, LLC
***HEARING ON MOTION IN RE: STRIKE DEFENDANTS EXPERTS WHO WERE IMPROPERLY DISCLOSED AS SUPPLEMENTAL EXPERTS**
FILED BY: BRADSHAW, DANIEL
****TENTATIVE RULING:****

This is a trial motion, so the hearing is **continued** to the Issue Conference date.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C25-00500
CASE NAME: SHAMIKA MUHAMMAD VS. COLD AIR REFRIGERATION, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES AND SANCTIONS**
FILED BY: COLD AIR REFRIGERATION, INC.
****TENTATIVE RULING:****

Defendant Cold Air moves to compel response and production of documents on four specific requests, all generally concerned with agreements that plaintiff may have with medical providers concerning payment of medical bills for treatment for the injuries alleged in this lawsuit. The motion